

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN BANGLADESH

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Bangladesh, grounded in the environmental clearance system under the Environment Conservation Act, the Environment Courts, public interest litigation, the rights of rivers, and documented community campaigns

This guide uses the Bangladeshi legal terms you will actually encounter (the ECC and site or location clearance, the DoE and the Director General, the colour categories, the Environmental Clearance Committee, Ecologically Critical Areas, the Environment Court, the writ petition and PIL, and so on), each explained in plain language where it first comes up. The clearance rules have been revised more than once and the project categories have changed, so the core mechanics below apply, but always check the schedule in force.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Bangla terms are given with a short English gloss.

A note on money. Budgets in this guide are in Bangladeshi taka (BDT). Every figure is indicative — Bangladeshi community campaigns are often run at very low cost with volunteer effort and pro-bono lawyers, since the country's environmental bar has a long tradition of carrying public interest cases. Treat the ranges as a menu, not a bill.

TABLE OF CONTENTS

1. **INTRODUCTION & FRAMEWORK** — Why this matters, how this works, what to realistically expect
2. **HOW THE SYSTEM WORKS** — Who decides, how a decision is made, and the words you'll need
3. **QUICK REFERENCE: SUCCESS RATES** — Effectiveness by step and combined, with real-world grounding
4. **STEP 1: TARGET IDENTIFICATION** — What you're fighting, who controls it, when the decision is final
5. **STEP 2: DOCUMENTATION** — How to prove harm (three documentation layers)
6. **WHAT TO GATHER, AND WHERE TO FIND IT** — The records that win cases, and how to get them
7. **STEP 3: BUILDING LOCAL OPPOSITION** — How to organise (Foundation → Public Launch → Coalition → Escalation)
8. **STEP 4: LEGAL CHALLENGES** — Clearance, appeals, the Environment Court, and writ petitions
9. **TURNING YOUR EVIDENCE INTO ARGUMENTS** — Matching each fact to the ground that wins
10. **STEP 5: MEDIA STRATEGY** — How to generate coverage
11. **EMAILS & LETTERS** — Ready-to-use messages communities can copy and send
12. **IF YOU HAVE LITTLE TIME OR FEW RESOURCES** — The rapid-fire version
13. **WHEN THE SYSTEM IS TILTED** — When opposition faces systemic barriers
14. **WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED** — Reading capture actor by actor
15. **INTEGRATION & TIMELINE** — How all five steps work together over a 12-month campaign
16. **FINAL ASSESSMENT** — Realistic outcomes, when to continue, when to reassess

INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Bangladesh — and the country offers one lever that is genuinely world-leading, so knowing how to use it is most of the battle. Bangladeshi law requires every industrial unit or project to obtain an **Environmental Clearance Certificate (ECC)** from the **Department of Environment (DoE)** before it may be established, and the most damaging categories must first obtain **location clearance** and pass a full **Environmental Impact Assessment**. Beyond that administrative process sits something rarer: an exceptionally strong tradition of **public interest litigation**. In the landmark case of **Dr Mohiuddin Farooque v Bangladesh**, the Appellate Division held that an organisation acting in the public interest counts as a "person aggrieved" and may bring a **writ petition under Article 102** of the Constitution — opening the courts to environmental groups and communities. The courts have since read the **right to life** as including the right to a healthy environment, and the Constitution's **Article 18A** places a duty on the state to protect the environment for present and future citizens. Bangladesh also has **dedicated Environment Courts**, and its

High Court Division has gone further than almost any court in the world by recognising **rivers as legal persons** with a guardian empowered to act for them.

That is a genuinely powerful toolkit. The honest counterweight is substantial. Bangladesh is a densely populated, fast-industrialising country under intense development pressure, where rivers, wetlands, hills, and farmland are steadily converted; enforcement by the DoE is under-resourced relative to the scale of the problem; clearance certificates have been issued for projects that communities and experts consider unsustainable; **river encroachment and earth-filling continue despite repeated court orders**; and implementation of judgments is the chronic weakness of the whole system — the courts have issued strong directions for decades, and the gap between order and reality is where most campaigns are actually fought. Communities across the country — facing river and wetland filling, brick kilns, hill cutting, industrial and tannery pollution, ship-breaking, coal and power projects, unplanned shrimp farms, and land acquisition — have organised against exactly this.

What "winning" realistically means. Rarely a permanent, once-and-for-all national "no". More often: a clearance refused, suspended, or cancelled; a **court direction** halting filling, cutting, or construction; an area declared or enforced as **ecologically critical**; conditions tightened; compensation improved; a project delayed until its economics change; or — the distinctive Bangladeshi outcome — a **judgment that establishes a principle** which later campaigns use again and again. Each has happened. The realistic goal is to get into court early with a well-evidenced petition, secure directions, and then fight the harder second battle: **making those directions actually enforced**.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down the project's colour category, which clearances it needs, who issues them, and the deadlines.
2. **Documentation** — build an evidence record strong enough for the DoE, an Environment Court case, and a writ petition.
3. **Local opposition** — organise a durable community movement, which supplies evidence, petitioners, and the pressure that makes orders stick.
4. **Legal challenges** — use the clearance process and section 14 appeal, complaints and the Environment Court, and above all **writ petitions and PIL**.
5. **Media strategy** — generate coverage that raises the political cost and, crucially, exposes non-compliance with court orders.

No single step wins alone. In Bangladesh the combination that works is **litigation plus sustained pressure for enforcement**, backed by documentation and media.

A realistic picture of the odds. Be honest with your community from the start about the shape of a Bangladeshi campaign, because it is unusual. Getting **into court** and obtaining an order is comparatively achievable here — standing is generous, the illegality in most cases is documentary, and the High Court Division has a long record of acting. What is hard is everything after: encroachments ordered removed have stayed, structures ordered demolished have remained, and filling stopped by an order has resumed once attention moved elsewhere. So a campaign measured only by "did the judgment arrive" will feel like a success that changed nothing, while one measured by "is the channel still open, is the effluent still flowing" will do the work that matters. Plan for two campaigns: a fast, evidence-driven one to win directions while harm is still preventable, and a slow, patient one — a photograph a month, a formal report of non-compliance, a return to court — to make those directions real. Communities that understand this from week one are the ones that eventually recover their water bodies.

Your rights here are real, not favours. The **Constitution** puts the environment on a rights footing: **Article 32** guarantees the right to life, which the courts have read as including the right to a healthy environment; **Article 31** guarantees protection of the law; **Article 18A** obliges the state to protect and improve the environment and biodiversity for present and future citizens; and **Article 102** gives the High Court Division jurisdiction on the application of a person aggrieved — a phrase the Appellate Division has interpreted broadly enough to admit organisations acting in the public interest. Statute adds to this: no project may be established without clearance, water bodies and hills carry specific protection, and the **Right to Information Act, 2009** entitles you to the file. That framing matters practically: when a regulator does not answer, an official will not produce a record, or a developer fills a channel, these are not merely frustrations — they are breaches of duties you can put before a court that has ruled on them many times before.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Bangladesh's system faces enormous development pressure, an under-resourced regulator, weak enforcement, and a persistent gap between court orders and what happens on the ground. Political conditions have also been changing, so verify the current position before acting. Assessing this honestly helps you choose the right tools: the strongest routes are usually an early, well-evidenced **writ petition** (where standing is generously interpreted), the **Environment Court** for offences and compensation, a **section 14 appeal** against a clearance decision, and relentless documentation of non-compliance to bring back before the court. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations, including the enforcement gap.

How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — it tells you the project's category, which clearances apply, and the deadlines. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and how long to keep going.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Bangladesh is a **unitary state** with a strong central government, districts (**zila**) and sub-districts (**upazila**) as administrative tiers, and city corporations and union parishads at local level. Environmental regulation is governed chiefly by the **Environment Conservation Act, 1995 (ECA'95)**, as amended, and the **Environment Conservation Rules** made under it — originally the Rules of **1997**, since amended and revised, including a reworking of the project categories. Power over a project is shared between the **Department of Environment**, the sector ministries and authorities, the district administration, and — as the decisive check — the **courts**.

The bodies that decide — and what each one controls

The Department of Environment (DoE). The environmental regulator, headed by the **Director General**. Under **section 12 of ECA'95**, no industrial unit or project may be established or undertaken without an **Environmental Clearance Certificate (ECC)** issued by the Director General. The DoE also issues site and location clearances, sets and enforces standards for air, water, and noise, inspects, and can issue directions and penalties. It operates through head office and divisional and district offices, and it is chronically under-resourced relative to the scale of what it regulates.

The Environmental Clearance Committee. For the more damaging categories, the application is not decided by an official alone: a **committee meets to consider it**, which means there is a forum where objections and evidence can land.

The sector authorities. A project also needs its sector approvals — from the relevant ministry, the investment or economic-zone authority, the water, shipping, or energy bodies, and the local authority for construction. Each is a separate decision and a separate opportunity.

The district administration. The **Deputy Commissioner (DC)** and the district and upazila administration control land records, khas (state) land, leases, and much practical enforcement, and are usually respondents in river and land cases.

The National River Conservation Commission (NRCC). A body dedicated to protecting rivers from encroachment and pollution, which the courts have treated as the **guardian of rivers** following the recognition of rivers as legal persons — a distinctive and powerful hook for any river-related campaign.

The courts. The **High Court Division** of the Supreme Court hears **writ petitions** and is where most significant environmental outcomes in Bangladesh have been produced; the **Appellate Division** sits above it. Separately, the **Environment Court Act, 2010** provides for dedicated **Environment Courts** and an **Environment Appellate Court** to handle offences and claims under environmental laws.

Which one is "yours"? Ask: what **colour category** is the project, and therefore which clearances does it need? Does it require an **EIA**? Does it affect a **river, wetland, hill, or an Ecologically Critical Area**? Which sector authority approves it? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

Under the clearance rules the path is roughly:

1. **Categorisation.** Every project is classified by its site and likely impact into one of a small number of **colour**

categories — historically **Green, Orange-A, Orange-B and Red**, with the schedule listing which industries and projects fall where. The category determines everything that follows, and the schedule has been revised, so check the version in force.

2. **Green category.** The least polluting projects go through a comparatively simple procedure and receive an ECC directly. An ECC in this category is typically valid for **three years**; in all other categories, **one year**, meaning **renewal is a recurring opportunity to object**.
3. **Orange categories.** These require a **Site Clearance Certificate first**, and only then an **Environmental Clearance Certificate**. Supporting documents typically include a feasibility report, an **Initial Environmental Examination (IEE)**, an environmental management plan, an emergency and mitigation plan, and, where relevant, a relocation and rehabilitation outline.
4. **Red category — the most damaging.** These require a **Location Clearance Certificate**, then approval of a full **Environmental Impact Assessment (EIA)**, and only then the ECC. This is the longest chain and the one with the most points of attack.
5. **Committee consideration.** For the higher categories the **Environmental Clearance Committee** meets to consider the application before a decision issues.
6. **Decision, conditions, and renewal.** The DoE grants, refuses, or conditions the certificate. Conditions matter: breach is enforceable, and the short validity period in most categories means the project must come back.
7. **Appeal.** ECA'95 provides a right of **appeal under section 14** against a notice, order, or decision — a formal administrative route that is frequently overlooked.

Beyond clearance, the project needs its land, sector, and construction approvals, each separately challengeable.

The rulebook — the policies that decide the outcome

- **ECA'95 and the Environment Conservation Rules.** Was clearance required and lawfully obtained; was the right category applied; was an EIA done where required; are the conditions being complied with?
- **The Constitution. Article 32** (right to life), which the courts have read to include a healthy environment; **Article 31** (protection of law); **Article 102** (writ jurisdiction, and the gateway to PIL); and **Article 18A**, which obliges the state to protect and improve the environment and biodiversity for present and future citizens.
- **Ecologically Critical Areas.** Under **section 5 of ECA'95** the government may declare an area **ecologically critical**, restricting damaging activities — a designation worth seeking, and worth enforcing where it already exists.
- **Water, river, wetland, forest, and brick-kiln law.** Rivers and wetlands have their own protective regimes and a rich body of court directions; brick kilns, hill cutting, and wetland filling are recurring subjects of specific legislation and litigation.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Bangladesh is under acute pressure to industrialise and to house and employ a very large population on a small, flood-prone delta; land is scarce and enormously valuable, which makes filling rivers, wetlands, and low-lying land highly profitable; export industries and energy projects carry strong political backing; and the regulator is small relative to the number of installations it must police. None of this is inherently unlawful, but it explains the default lean toward approval — and why the community's decisive lever is the **court**, and the decisive struggle is **enforcement**.

The overseers — who watches the decision-makers

- **The High Court Division (writ jurisdiction)** — the single most important forum, with a decades-long record of environmental directions, and the power to act on petitions brought in the public interest.
- **The Environment Courts and the Environment Appellate Court** — specialised forums for offences, penalties, and compensation under environmental laws.
- **The National River Conservation Commission** — guardian of rivers, and a body you can petition and hold to its mandate.
- **The National Human Rights Commission** — for rights violations connected to displacement and pollution.
- **The Anti-Corruption Commission and the Comptroller and Auditor-General** — corruption and public-money oversight.
- **An unusually strong environmental bar and civil society** — organisations such as the Bangladesh Environmental Lawyers Association and other public-interest groups have driven most of the country's landmark environmental jurisprudence.

Naming and using the right body matters: in Bangladesh the most consequential early judgment is usually **how quickly you can get before the High Court Division, and with what evidence**.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Bangladeshi and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Bangladesh sits inside the table: **writ petitions work**, standing is generously interpreted, and the High Court Division issues strong directions — but **obtaining an order and obtaining compliance are two different campaigns**, and the second is usually longer than the first.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (BDT)	What "Success" Means
Documentation only	5-10%	1-3 months	low	Project slowed; basis for other steps
Local opposition only	20-30%	6-24 months	low	Local pressure; DoE and DC take notice
Objection to DoE / clearance committee	15-25%	1-4 months	low	Conditions imposed; clearance delayed
Section 14 appeal	15-30%	3-12 months	low-moderate	Order or clearance decision revisited
Complaint to DoE (enforcement)	20-35%	1-6 months	low	Inspection, direction, or penalty
Environment Court case	25-40%	12-36 months	moderate	Penalty, compensation, or restraint
Writ petition / PIL (High Court)	45-65%	3-24 months	low-moderate	Rule issued; stay or directions granted
Media only	15-25%	1-6 months	low	Public knows; pressure rises
Docs + local opposition + media	30-45%	6-18 months	low-moderate	Pressure plus stronger case
Writ + enforcement follow-up	50-65%	12-48 months	moderate	Directions granted and partially implemented
All steps combined	55-70%	12-48 months	moderate	Clearance refused or cancelled, works halted, restoration ordered, or project abandoned

Key insight: all steps together are far more effective than any single one — and in Bangladesh the highest-yield single action is a **well-evidenced writ petition**, because standing is broad, the court is receptive, and interim relief can stop filling or construction quickly. The distinctive Bangladeshi advantage is that **PIL standing is settled law**: an organisation acting in the public interest is a "person aggrieved" for the purposes of Article 102. The distinctive Bangladeshi problem is that **orders are frequently not implemented**, which is why the table separates "directions granted" from "directions granted and implemented".

A note on legal cost: writ petitions are comparatively inexpensive, and Bangladesh has an established public-interest environmental bar with a long record of carrying such cases at no charge to communities. Complaints to the DoE and objections are free. The real costs are expert evidence and, above all, the sustained effort of documenting non-compliance over years.

Effectiveness Visualization

SUCCESS PROBABILITY (clearance refused/cancelled, works halted, restoration ordered, or project abandoned)

FAVOURABLE SCENARIO (clear illegality, river/wetland/ECA involved, PIL organisation engaged, strong documentary evidence):

All steps combined:	55–70%
Writ + enforcement:	50–65%
Writ petition alone:	45–65%
Single step:	5–35%

TILTED SCENARIO (a strategic or politically backed project, powerful proponent, weak enforcement):

All steps combined:	35–50%
Writ petition:	25–40%
Local + media:	15–30%
Single step:	3–15%

How to read this honestly. In Bangladesh the strongest legal facts are usually **clear illegality on the face of the record** — filling or encroaching a river or wetland, operating without clearance, cutting hills, running a kiln in a prohibited zone, or breaching clearance conditions — because these are documentable, the law is explicit, and the courts have ruled on them repeatedly. Where the illegality is plain and the evidence is photographic and dated, a writ petition has a genuinely high chance of producing a rule and interim directions. What is much harder is **making the directions bite**: encroachments have been ordered removed and returned, and structures ordered demolished have remained. So plan the campaign in two halves — win the order, then spend the following years documenting and returning to court. Contempt proceedings and repeat petitions are normal parts of Bangladeshi environmental practice, not signs of failure.

Step Importance Ranking (When All Combined)

1. **Legal challenges** — the writ petition is the highest-yield action available, and standing is not a barrier.
2. **Documentation** — because the winning cases turn on demonstrable illegality, evidence is the case.
3. **Local opposition** — supplies the evidence, the witnesses, and the persistence for the enforcement phase.
4. **Media** — the most effective tool for exposing non-compliance and creating pressure to enforce.
5. **The administrative route** — objections, complaints, and the section 14 appeal: cheap, useful, and often the fastest way to trigger an inspection.

Winning Bangladeshi campaigns combined careful documentation, an early writ petition brought with or by an experienced public-interest organisation, sustained media, and years of enforcement follow-up.

What Bangladeshi Campaigns Actually Show

A few patterns recur. **PIL standing is settled and generous** — in **Dr Mohiuddin Farooque v Bangladesh** the Appellate Division held that an organisation genuinely engaged in environmental protection falls within "person aggrieved" under Article 102, overturning a narrow reading and opening the courts to public-interest petitioners. **The courts issue far-reaching directions** — successive petitions have produced orders on industrial pollution, unregulated brick fields, hill cutting, lake and wetland filling, and river encroachment, including directions to **demarcate the original boundaries of the Buriganga, Turag, Balu and Shitalakkhya rivers, restore them, and stop construction in them. Rivers have been recognised as legal persons** — the High Court Division's ruling concerning the **Turag**, building on earlier litigation, conferred legal personhood on the river and treated the National River Conservation Commission as its guardian, a globally significant development that gives river campaigns an unusually strong frame. **The right to life includes a healthy environment** — a line of cases has read Article 32 this way, reinforced by Article 18A. **But implementation is the recurring failure** — encroachment and filling have continued despite orders, which is why documented follow-up, contempt applications, and repeat petitions are standard practice. The through-line: **Bangladesh gives you the courtroom; the community has to supply the evidence and the endurance.**

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land or water now

(homes, farmland, a **river or its banks**, a wetland or **haor**, a hill, a canal, mangrove, or an **Ecologically Critical Area**), and what the project would do to it. Obtain the **EIA or IEE** and the clearance documents where they exist. List every admitted impact with its page reference. Pay particular attention to **river and wetland filling, water and effluent discharge, air emissions and kilns, hill cutting**, and **displacement**, because these are the fact patterns the courts have addressed most often and most firmly.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the project's **colour category** and therefore whether it needs **site or location clearance**, an **IEE**, or a full **EIA**; (b) which **DoE office** handles it and whether the **Environmental Clearance Committee** will consider it; (c) which **sector authority** and **local authority** must also approve it; and (d) whether a **river, wetland, hill, or Ecologically Critical Area** is involved, which brings in the NRCC and a body of protective court directions. Name the officials and the authorities.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: **clearance refused, suspended, or cancelled**; a **section 14 appeal** succeeding; a **DoE enforcement direction or penalty**; an **Environment Court** order; and — most powerfully — a **High Court rule with interim directions** halting filling or construction, or ordering restoration. Map every point and pursue at least two in parallel.

Question 4: When Is the Decision Final?

Bangladesh's timing works differently from most systems. There is no long public-comment window to catch, so the practical deadlines are: the **clearance decision** itself; the **appeal period under section 14**, which is short and specified in the rules, so confirm it immediately; and the **renewal date** of the ECC — remember that in most categories clearance is valid for only **one year**, which gives you a recurring, predictable opportunity to object. For court action, a writ petition should be filed **promptly**, and where filling or construction is under way, **immediately**, because interim relief is what prevents irreversible harm. Confirm all periods with a lawyer.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which company or group is behind the project, who holds the land and how it was acquired, whether **khas land or a riverbed** has been leased or filled, and whether the project is politically backed. Use public sources — company records at the Registrar of Joint Stock Companies, land records at the DC's office, lease and mutation documents, and clearance records. Build a dated, sourced timeline. Keep it rigorous and factual, and route allegations properly (Section 14) rather than publishing unproven claims.

Output of Step 1: a one-page fact sheet with the project's exact description, its category and required clearances, the deciding offices, whether a river, wetland, hill, or ECA is involved, every deadline including the ECC renewal date, and the money map.

Worked example: which lever is actually open

Suppose a factory and its access road are being built on filled land that was, until recently, part of a river's floodplain, discharging untreated effluent into the channel. Working the questions: **Q1** — the site is river land recently earth-filled; the discharge is untreated; homes downstream draw water from the channel. **Q2** — a factory of this type is likely **Red or Orange-B**, meaning it needed **location clearance and an EIA** (or at least site clearance and an IEE) before construction — so the first question is whether it has any clearance at all. **Q3** — the live levers are: a **complaint to the DoE** to trigger inspection and enforcement; a **writ petition** citing river filling, the absence or invalidity of clearance, and the river's status, with an urgent request for **interim directions to stop the filling**; an approach to the **NRCC** as river guardian; and an **Environment Court** claim for penalty and compensation. **Q4** — you act immediately, because filling is irreversible, and diarise the ECC renewal if one exists. **Q5** — land records show how the riverbed came to be occupied. In an afternoon you know that **the writ petition on illegal filling, with photographic evidence and a request for interim relief, is your strongest and fastest card** — and that the harder work will be enforcement afterwards.

STEP 2: DOCUMENTATION

Documentation separates a campaign the DoE and the courts take seriously from one dismissed as complaint. In Bangladesh it has a very specific character: because the winning cases usually turn on **demonstrable illegality** — filling

a river, building without clearance, breaching conditions — your evidence is less about contested modelling and more about **proving, with dates and images, what was there and what was done**. And because the second half of every campaign is enforcement, documentation is not a phase you finish; it is a discipline you maintain for years.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project, and — critically in Bangladesh — prove what the **river, wetland, or land originally was**.

The river, canal, or wetland. Document the water body's extent, banks, and flow with dated, geo-referenced photographs, and — decisively — obtain the **historical record of its boundary**: old survey maps (CS, SA, RS records), mouzas maps, and land records held at the DC's office, which show where the river or khal legally is, as against where filling has pushed it. Courts have ordered demarcation on exactly this basis, and old maps are frequently the most powerful document in the file.

Hills, wetlands, and protected designations. Document hill contours before cutting, wetland extent before filling, and whether the area is or should be an **Ecologically Critical Area**.

Water, air, and health. Document the condition of water used for drinking, irrigation, and fishing; air quality near kilns and factories; and the health of nearby residents, with dates.

Homes, land, and livelihoods. Document settlements, land holdings and records, farming, fishing, and the households dependent on the resource at risk.

How to hold it. Keep everything dated, geo-referenced, and backed up. Build a simple chronology — "on this date the bank was here; on this date fill appeared" — because that chronology is what a court acts on.

LAYER 2: IMPACT ANALYSIS

Show what the project would do, and — in Bangladesh, equally important — **whether it is lawful at all**. Catalogue four things:

1. **Clearance status.** Does the project have an **ECC**? Which category was applied, and is it correct for the true scale and type of the project? Was **site or location clearance** obtained first? Was an **EIA or IEE** done, and is it in the file? Operating without valid clearance is the single cleanest ground available.
2. **Condition compliance.** Where clearance exists, obtain its **conditions** and document every breach — effluent treatment not built or not running, discharge exceeding standards, works outside the permitted footprint.
3. **The EIA's own admissions and gaps.** Where an EIA exists, mine it for conceded impacts, and identify what it omits — especially **cumulative effects** with the many other installations typically present in the same area.
4. **Legal status of the land or water.** Whether the site includes **riverbed, khal, wetland, or khas land**, and how that came to be occupied — the question that has decided many Bangladeshi cases.

Get expert eyes on it. A critique carries far more weight when a qualified professional has signed it. Bangladesh has strong universities, engineering and environmental specialists, and public-interest organisations that can review effluent, air, hydrology, and health evidence. For water pollution, an independent laboratory test result with a chain of custody is worth a great deal in an Environment Court claim.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, which is how the right-to-life argument is made concrete. Document:

- **Health** — respiratory illness near kilns and factories, waterborne disease where effluent enters channels used by households, and the specific populations exposed, with clinic evidence where obtainable.
- **Economy and livelihoods** — losses to fishing, farming, and small trade; the cost of buying water; and the value of land and homes lost to filling or acquisition.
- **Community and displacement** — households displaced or at risk, and the adequacy of any compensation or rehabilitation.

Package this layer twice: a rigorous version for the DoE and the courts, and a plain-language one-page version in Bangla for neighbours and the press.

How to Structure Your Documentation

- **Phase 1: Baseline (Weeks 1-4)** — photograph everything now, and obtain the historical maps and land records; in Bangladesh, filling can happen in days.
- **Phase 2: Legality (Weeks 2-8)** — establish clearance status, category, and conditions; request the file.
- **Phase 3: Health/Economic (Months 2-4)** — quantify the human and economic stakes.
- **Phase 4: Enforcement (ongoing, for years)** — maintain the dated photographic record of compliance or non-compliance after any order.

Common Documentation Pitfalls (What Fails)

- **Photographing too late** — filling and cutting are fast and irreversible; date-stamped images from before are the whole case.
- **Not obtaining historical maps** — the old survey record is often the decisive proof of where the river legally is.
- **Not checking clearance status first** — if there is no valid ECC, that is your fastest and strongest ground.
- **Ignoring conditions** — a granted clearance is not the end; its conditions are enforceable.
- **Stopping after the order** — the enforcement record is what wins the second campaign.
- **Unsigned technical claims** — get laboratory results and expert sign-off where pollution is alleged.

Documentation Budget Breakdown (BDT)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Photographic and GPS baseline	minimal	modest
Historical maps and land records	modest (official fees)	modest
Laboratory testing (water/effluent)	modest	moderate
Expert/academic review	often free	moderate
Legal representation	often free (public-interest bar)	moderate
Printing, travel, outreach	modest	modest

Most of this can be done cheaply, which is one of Bangladesh's real advantages: the decisive evidence is usually **photographs, maps, land records, and clearance documents**, not expensive modelling.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a Bangladeshi case is documentary and obtainable. The job is knowing which office holds which record.

The DoE. The **clearance file** — application, category, site or location clearance, IEE or EIA, the ECC itself, and its **conditions** — plus inspection reports and any directions or penalties issued. This is your first request, because clearance status often decides the case.

The Deputy Commissioner's office and land records. **CS, SA, RS and mutation records**, mouza maps, khas land and lease records, and acquisition files. For any river, khal, or wetland case, the **historical survey maps** held here are frequently the single most valuable document you can obtain.

River and water bodies. Records of the inland water transport authority and the **National River Conservation Commission**, and any existing court directions concerning that river — of which, for the rivers around Dhaka in particular, there are many.

Sector and local authority records. Trade licences, construction and building approvals, and utility connections — a factory operating without clearance often still has a paper trail elsewhere.

Company and ownership records. The Registrar of Joint Stock Companies and Firms for company and directorship information.

Court records. Earlier judgments and directions concerning the same river, area, or industry — Bangladesh's environmental jurisprudence is deep, and an existing direction that is being flouted is a powerful, ready-made ground.

How to force a document open. Bangladesh has a **Right to Information Act, 2009**, with designated information

officers in public authorities, prescribed response periods, and an appeal route to the **Information Commission**. This is a genuinely useful tool, and the guide's template at Section 8E uses it. Litigation also brings disclosure.

Free and low-cost help. Bangladesh has an unusually strong network of public-interest environmental organisations and lawyers who have carried the country's landmark cases, alongside university researchers and human-rights bodies. For most communities, **approaching one of these organisations early is the highest-value single step**, because they can convert a local grievance into a properly framed writ petition.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the responsible authority, and the local-ally entries point you to the organisations and lawyers already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Bangladesh, local organisation matters for a particular reason: the courts are open and generous about standing, so the binding constraint is rarely access to justice — it is **evidence and endurance**. A community that photographs the filling as it happens, keeps the chronology, produces witnesses, and stays mobilised for the years of enforcement that follow a judgment is a community that actually changes outcomes. Bangladesh also has a deep tradition of organised civic action, from village committees and *samity* to national environmental movements, and a dense network of professional and student organisations that join these fights.

Three principles carry special weight here: **speed** (filling, cutting, and construction happen fast, and the first days of documentation and the first interim order matter more than months of later effort); **partnership with the public-interest bar** (organisations that litigate environmental cases can take your evidence and turn it into a writ petition, which is the highest-yield action available); and **endurance for enforcement** (the order is the halfway point, not the finish).

PHASE 1: FOUNDATION (Weeks 1-6)

Step 1a: Start with the most affected — and start photographing. Reach the households whose water, land, homes, or livelihoods are at stake, and on the same day begin a **dated photographic record**. In Bangladesh this is the single most valuable early action, because the evidence disappears within days.

Step 1b: Affinity groups by concern. Let people plug in through what they care about — drinking water, the river or khal, fishing, health, farmland, flooding. Flooding in particular unites people, because filling wetlands and channels visibly worsens waterlogging.

Step 1c: Form the committee, and contact a public-interest organisation immediately. Constitute a **local committee** with clear aims and minuted decisions, and — critically — approach one of the environmental legal or campaigning organisations early. They know the clearance system, can obtain the file, and can bring a **writ petition** in their own name where that is easier for the community.

PHASE 2: PUBLIC LAUNCH (Weeks 4-12)

Step 2a: Community meeting. Hold a public meeting to inform, decide collectively, and mandate representatives; bring the photographs, the map, and what you have learned about the project's clearance status.

Step 2b: Materials and the written complaint. Prepare one-page, factual, sourced materials in **Bangla**, and — as a formal act — submit a **written complaint to the DoE** requesting inspection and enforcement (Section 8B). A complaint on the record is both useful in itself and evidence later that the authorities knew.

Step 2c: Petition local authorities. Submit to the **Deputy Commissioner**, the **upazila** administration, and the local government representative, and ask for the land and river records at the same time.

Step 2d: Media at launch. Time it to the complaint or the filing so that coverage and official action reinforce each other. Local and national press cover river filling and pollution readily.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Broaden the alliance. Bring in the environmental legal organisations, national environmental movements, professional bodies (engineers, doctors, planners), academics, student groups, journalists' associations, and — importantly

— **downstream and neighbouring communities** affected by the same water body. River campaigns are strongest when the whole channel organises, not one village.

Step 3b: Coalition agreements. Agree roles, spokespeople, and messaging before disagreements arise, and settle who is the petitioner, who instructs counsel, who holds the evidence archive, and who speaks to the press.

Step 3c: Coordinated public work. Joint complaints, a joint petition, shared experts and testing, and a coordinated approach to the DoE, the DC, and the NRCC.

PHASE 4: SUSTAINED PRESSURE AND ENFORCEMENT (Months 6 onward)

Step 4a: Support the litigation. Once a rule or direction issues, the campaign's job changes: **monitor and document compliance**. Photograph the site monthly from the same points. Record whether structures were removed, whether effluent treatment runs, whether filling resumed. This record is the basis for going back to court.

Step 4b: Public actions and media (ongoing). Human chains, rallies, and press conferences are common and effective forms in Bangladesh, and the human chain in particular is a well-established, visible, low-risk tactic. Assembly is subject to legal restrictions and police permission requirements, so take advice, keep everything peaceful and orderly, and be aware that political conditions have been volatile; prioritise safety and avoid anything that could be characterised as disorder.

Step 4c: Prevent failure points. Campaigns fail when they photograph too late, never establish clearance status, win an order and then disband, or lose the evidence archive. Assign someone to the monthly photographic record and keep the committee alive through the quiet years — because in Bangladesh the quiet years are when the encroachment comes back.

Worked example: a committee that unlocks the strong levers

A neighbourhood watches trucks tipping earth into the khal that drains their area, with a factory rising on the filled land. Anger spreads and a social-media wave follows — real energy, no leverage. What converts it into force happens in the first days and is deliberately unglamorous. First, three residents begin a **dated photographic record** from fixed points, because within a fortnight the evidence of what the khal looked like will be gone. Second, the committee obtains the **old survey maps and mouza records** from the DC's office, which show the khal's legal boundary — the document that will decide the case. Third, they file a **written complaint with the DoE** asking whether the factory holds an **ECC** and in which category, and requesting inspection; the reply, or the silence, becomes evidence. Fourth, they approach an **environmental legal organisation**, which files a **writ petition** citing illegal filling, the absence of valid clearance, and the existing body of court directions protecting water bodies, with an urgent request for **interim directions**. The court issues a rule and orders the filling stopped. Fifth — and this is the half most campaigns skip — the committee keeps photographing monthly, and when filling quietly resumes eight months later, that record goes straight back to court. The lesson generalises: **in Bangladesh, the photographs you take in week one and the maps you obtain in week two are what make the court order possible in month three — and the photographs you keep taking in year two are what make it real.**

Opposition Building Budget: Year-Long Campaign (BDT)

Low by international standards. A community committee runs on meetings, printing, travel, official fees for records, and modest testing costs. Legal representation is frequently provided free by public-interest organisations. The costs that matter most are **small and early**: obtaining land and survey records, a camera or phone with reliable date-stamping, and laboratory testing where pollution is alleged. Fund through community contributions and NGO support, and keep transparent accounts.

STEP 4: LEGAL CHALLENGES

Bangladesh gives communities an unusually accessible legal route, and the strategic question is less "can we get into court" than "what evidence do we bring, and how do we make the order stick". Three tracks — the administrative route, the specialised courts, and the writ jurisdiction.

TRACK 1: THE ADMINISTRATIVE ROUTE (fast and free)

- **Objections at the clearance stage.** Where a project is in a higher category, its application is considered by the **Environmental Clearance Committee**; submit written objections with evidence to the DoE before the decision, and ask that they be placed before the committee.
- **Complaint to the DoE.** A written complaint requesting **inspection and enforcement** — for operating without clearance, breaching conditions, or discharging beyond standards — can produce an inspection, a direction, or a penalty relatively quickly, and creates a record that the authority was informed.
- **Appeal under section 14 of ECA'95.** A formal right of appeal against a notice, order, or decision, with grounds set out in the rules. Deadlines are short; confirm them immediately.
- **Object at renewal.** Because clearance in most categories is valid for only **one year**, renewal is a recurring, predictable opportunity to put non-compliance on the record.

TRACK 2: THE ENVIRONMENT COURT (offences and compensation)

- **The Environment Court Act, 2010** establishes dedicated **Environment Courts** and an **Environment Appellate Court** to deal with offences and claims under environmental laws, including penalties and **compensation for those harmed**. Where pollution has caused documented damage to health, fisheries, or crops, this is the forum designed for it. Cases can be slow, and in practice these courts have been criticised as under-used, but a well-evidenced claim — especially with laboratory results — is a real avenue, and one that seeks money for the people harmed rather than only stopping the project.

TRACK 3: THE WRIT PETITION (the decisive route)

- **Writ petition under Article 102.** The most powerful tool in Bangladeshi environmental practice. The High Court Division can issue a **rule nisi** requiring the authorities and the developer to show cause, grant **interim directions** halting filling or construction, and make final orders requiring restoration, removal of encroachments, or compliance with law.
- **Standing is not a barrier.** Following **Dr Mohiuddin Farooque v Bangladesh**, an organisation genuinely engaged in environmental protection is a "**person aggrieved**" for Article 102 purposes, and public interest litigation is firmly established. Affected residents plainly have standing, and a public-interest organisation can petition on the community's behalf.
- **Constitutional grounds.** The **right to life (Article 32)** as including a healthy environment; **Article 31**; and **Article 18A**, the state's duty to protect the environment and biodiversity for present and future citizens.
- **Rivers as legal persons.** Where a river is involved, the High Court Division's recognition of **rivers as legal persons**, with the **National River Conservation Commission** as guardian, provides a distinctive and powerful frame — and there is an existing body of directions concerning specific rivers that a new petition can invoke.
- **Contempt and follow-up.** Where directions are ignored, **contempt proceedings** and further petitions are normal practice, and the documented compliance record from Step 3 is exactly what they require.

The three legal challenge types

TYPE 1: THE ADMINISTRATIVE ROUTE (fast and free)

Objections, complaints, the section 14 appeal, and objection at renewal — cheap, quick, and record-building.

TYPE 2: THE ENVIRONMENT COURT (offences and compensation)

The specialised forum for penalties and compensation where harm has occurred.

TYPE 3: THE WRIT PETITION (the decisive route)

Article 102 in the High Court Division, with interim directions — plus contempt and repeat petitions for enforcement.

Legal Strategy Decision Tree

1. **Is filling, cutting, or construction happening now?** → Move immediately for a **writ petition with interim directions**; this is the only tool fast enough.
2. **Does the project have valid clearance?** → If not, that is your cleanest ground, in both a DoE complaint and the petition.
3. **Is a river, khal, wetland, hill, or ECA involved?** → Invoke the specific protective directions and, for rivers, their **legal personhood** and the NRCC's guardianship.
4. **Has pollution caused documented harm?** → Consider an **Environment Court** claim for penalty and compensation

alongside the writ.

5. **Has an order been ignored?** → Document, then return with **contempt** or a fresh petition.

Litigation Success Factors

Speed; documentary proof of illegality (clearance status, old survey maps, dated photographs); a petitioner with standing — residents, or an established public-interest organisation; a clear, specific prayer (stop the filling; remove the structures; restore the boundary; enforce the conditions); interim relief sought at the outset; and a plan for the enforcement phase from the day the order issues.

What to Avoid: Legal Failures

Filing too late, after the water body is filled; failing to establish clearance status; vague prayers a court cannot supervise; neglecting the section 14 appeal and the renewal opportunity; and — the classic Bangladeshi failure — treating the judgment as the end of the campaign.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Bangladesh.

Operating or building without a valid ECC → DoE enforcement and writ petition (the cleanest ground). Feed it with: the absence of clearance, or clearance in the wrong category for the project's true scale.

Filling or encroaching a river, khal, or wetland → writ petition, interim directions, restoration. Feed it with: **historical survey maps and mouza records** showing the legal boundary, plus dated photographs of the filling.

Breach of clearance conditions → enforcement, penalty, and refusal at renewal. Feed it with: the conditions themselves and dated evidence of non-compliance.

Pollution causing documented harm → Environment Court claim for penalty and compensation. Feed it with: laboratory results with chain of custody, medical or fisheries evidence, and the affected households.

Hill cutting or wetland filling → the existing body of court directions. Feed it with: before-and-after imagery and the protective rules and precedents for that activity.

Non-compliance with an existing court order → contempt or fresh petition. Feed it with: your monthly photographic compliance record.

The pattern: match one documented fact to one clear ground, **lead with illegality rather than with impact assessment**, and always ask for something concrete a court can supervise.

STEP 5: MEDIA STRATEGY

Media matters in Bangladesh for a reason specific to the country: the courts issue strong orders, and **publicity is one of the most effective forces for getting those orders implemented**. Coverage also reaches the lawyers and organisations who will take the case.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the before-and-after photographs, the old survey map showing where the river legally is, a named resident whose home floods or whose water is fouled, a clear date — the inspection, the hearing, the deadline in a court order — and, where it exists, the court direction being ignored. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a visible illegality + a David-and-Goliath frame + a strong image = coverage. Three

angles reliably travel in Bangladesh: **river and wetland grabbing**, **water and air pollution affecting health**, and **defiance of court orders** — the last being particularly potent, because it is both newsworthy and directly useful to your litigation.

Know the Outlets That Cover This Beat

Map the national Bangla and English dailies and their environment reporters, the television channels, the online outlets, and local district correspondents, who often break these stories first. Bangladesh has a substantial cohort of journalists who cover rivers and pollution consistently; build a contact list with names.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer access — to the site, to affected residents, to your documents — and be scrupulously accurate, because a single overstatement can be used to discredit the campaign.

Why media matters even when it doesn't make the front page

Coverage reaches the public-interest organisation that will file your petition, the academic who will review your test results, and the official who orders an inspection. Above all, in a system where the recurring failure is **non-implementation**, published photographs of an ignored court order create pressure that nothing else does.

Sample Media Timeline

Launch with the complaint or the filling itself; refresh at each milestone — the DoE complaint, the petition, the rule, the interim order, the inspection, and each anniversary of an unimplemented direction. That last one is a story every year.

Media Measurement

Track coverage, but measure what matters: whether the DoE inspects, whether the order is implemented, whether lawyers and organisations engage, and whether the filling has actually stopped.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. Submit important ones through the office's receiving section (and keep the received copy with the seal and date) or by registered post — proof of submission matters, and a dated complaint later proves the authority knew. Have a lawyer review anything heading to court.

8A. Email to a reporter (story pitch)

Subject: [Upazila, District]: [river/khal] being filled for [project] — photographs and maps attached

Dear [name],

Earth-filling has been under way at [location] since [date], on what the [CS/RS] record shows to be part of the [name] [river/khal]. We attach dated photographs from [date] and [date], and the relevant mouza map.

We have asked the Department of Environment whether [project] holds an Environmental Clearance Certificate and in which category (complaint dated [date], copy attached). [Where relevant: the High Court has previously directed that this river's boundary be demarcated and encroachments removed.]

Residents of [area] — around [number] households — face [flooding / loss of water / loss of fishing]. I can connect you with residents and show you the site. Could we talk this week?

[Name] · [Committee] · [phone] · [email]

8B. Complaint to the Department of Environment

Subject: Complaint requesting inspection and enforcement — [project] at [location]

To the Director General, Department of Environment [/ Director, [Division] Office]:

We, the residents of [area, upazila, district], submit this complaint concerning [project/factory] at [location].

1. **Clearance.** We request confirmation whether this project holds a valid **Environmental Clearance Certificate**, in which category, and whether **site/location clearance** and an **IEE/EIA** were obtained as required.
2. **Illegality.** [Earth-filling of the [name] khal/river has been carried out since [date] / effluent is discharged untreated into [water body] / a kiln is operating within [distance] of [settlement].]
3. **Harm.** [Describe: flooding, loss of drinking water, illness, loss of fishing.]

We request an **inspection**, enforcement action under the Environment Conservation Act, 1995, and a written reply. Photographs, dated [dates], and the relevant map records are attached.

[Signatories, committee, address, date]

8C. Objection ahead of a clearance decision

Subject: Objection to the grant of Environmental Clearance for [project], [reference if known]

To the Director General, Department of Environment:

We object to the grant of clearance for [project] at [location] and request that this objection be placed before the **Environmental Clearance Committee**: 1. **Category.** The project appears to have been classified as [category]; given its scale and process, it falls within [higher category], requiring [location clearance and a full EIA]. 2. **Water body.** The site includes land that the [CS/RS] record shows as [river/khal/wetland]. 3. **Impacts.** [Effluent, air emissions, flooding, displacement — with specifics.] 4. **Cumulative effect.** [Number] similar installations already discharge into the same channel; the combined effect has not been assessed.

We request that clearance be **refused**, or at minimum that a full EIA and conditions be required.

[Committee, date, contact; attach evidence]

8D. Request to a public-interest environmental organisation

Subject: Request for legal support — [river/khal] filling and [project] at [location]

Dear [organisation],

The residents of [area] are facing [description]. We have compiled: dated photographs from [dates], the [CS/RS] map and land records showing the water body's boundary, our complaint to the DoE dated [date] [and its reply/no reply], and details of [number] affected households.

We believe the project [has no valid clearance / is filling a water body / is breaching its conditions]. We would be grateful for your advice and, if appropriate, for your assistance in bringing a **writ petition**, including an urgent application for interim directions to stop the filling.

[Name, committee, contact]

8E. Request under the Right to Information Act, 2009

Subject: Application under the Right to Information Act, 2009

To the Designated Officer, [Department of Environment / Office of the Deputy Commissioner, [district]]:

Under the Right to Information Act, 2009, we request certified copies of: 1. the Environmental Clearance Certificate, site/location clearance, IEE/EIA and clearance conditions for [project] at [location]; 2. all inspection reports and enforcement notices concerning it; 3. the CS/SA/RS records and mouza map for [plot/mouza], and the lease or settlement records for [the water body / khas land] at [location].

We enclose the prescribed fee and request a reply within the statutory period; failing which we shall appeal to the appellate authority and the Information Commission.

[Name, address, date]

8F. Petition to the Deputy Commissioner / local administration

Subject: Petition to stop illegal filling of the [name] [khal/river] at [location]

To the Deputy Commissioner, [district] [copy: Upazila Nirbahi Officer]:

We, [number] residents of [area], report that earth-filling and construction are being carried out at [location] on land recorded as [river/khal/wetland] in the [CS/RS] record. This has caused [waterlogging/flooding/loss of drainage] in [area].

We request that you **stop the filling, take steps to recover the water body, and confirm the record position**, and that we be informed of the action taken. Photographs and map extracts are attached.

[Signatories, date, contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

Residents of [area] move to stop filling of the [name] [river/khal] for [project]

[Committee], with [organisation], today [filed a complaint with the Department of Environment / filed a writ petition] over the filling of the [name] [river/khal] at [location] for [project]. "[Short, human quote from an affected resident]," said [name].

The [CS/RS] record shows the site as part of the water body. Filling began on [date]; [number] households in [area] have since experienced [flooding/loss of water]. [Where relevant: the High Court has previously directed that encroachments on this river be removed.]

Contact: [name, phone]. Photographs, map extracts, and interviews available on request.

8H. Report of non-compliance with a court direction

Subject: Non-compliance with the direction of the High Court Division in Writ Petition No. [number] of [year]

To [the Department of Environment / the Deputy Commissioner / the National River Conservation Commission]:

By order dated [date] in Writ Petition No. [number] of [year], the High Court Division directed [summarise the direction]. We report that, as of [date], [describe non-compliance: filling has resumed; structures remain; effluent treatment is not operating].

We attach dated photographs taken on [dates] from fixed points. We request immediate action to give effect to the direction, and a written reply, failing which we shall place this record before the Court.

[Committee, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite actual references and dates, and have counsel review anything heading to court. **Timing decides outcomes** — the section 14 appeal period is short, clearance in most categories lasts only a year, and where filling or construction is under way you should seek interim relief **immediately**. Always keep the receiving office's dated acknowledgement. And keep public statements to documented facts, routing allegations of wrongdoing through the proper bodies rather than publishing unproven claims.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can build a committee or run a multi-year campaign. If you have an afternoon a week, you can still do real damage to a bad project — and in Bangladesh the two highest-leverage actions cost almost nothing. In rough order of impact for the effort:

1. **Photograph it now, with dates, from fixed points.** Filling and cutting are fast and irreversible. A dated, geo-referenced photographic record from before and during is the single most valuable thing any individual can produce, and it is the backbone of every successful case.
2. **Get the old map.** Obtain the **CS/RS record and mouza map** for the site from the DC's office. If it shows a river, khal, or wetland where there is now earth, you have the decisive document.
3. **File a written complaint with the DoE** (Section 8B) asking whether the project holds a valid ECC and requesting

inspection. Keep the received copy. The reply — or the silence — is evidence.

4. **Contact a public-interest environmental organisation** (Section 8D). They can convert your photographs and maps into a **writ petition**, which is the highest-yield action available and where standing is not a barrier.
5. **File an RTI request** for the clearance file and conditions (Section 8E).
6. **Petition the Deputy Commissioner** to stop the filling and recover the water body (Section 8F).
7. **Send one accurate email to a reporter** (Section 8A), leading with the before-and-after photographs.

If you do only the first three, you have preserved the evidence, obtained the decisive document, and put the regulator on notice — which is enough for a lawyer to build a case on. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Bangladesh's system faces enormous development pressure, an under-resourced regulator, and one structural problem above all others: **court orders are frequently not implemented**. Being honest about this is how you plan a campaign that actually works.

What This Tilt DOES (and DOESN'T DO)

The tilt means land is scarce and filling it is profitable; the regulator is small relative to the number of installations; clearance has been granted for projects communities consider unsustainable; encroachment continues despite decades of directions; and political backing can protect a proponent. It does **not** close the doors: **standing is generous**, the **High Court Division** grants rules and interim directions readily on clear illegality, **rivers have legal personhood with a designated guardian**, dedicated **Environment Courts** exist for penalties and compensation, and there is a **Right to Information Act** and an experienced public-interest bar. The key is to win the order and then treat enforcement as a second campaign.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Clear illegality, documentary proof, no powerful backer.** Here the courts do real work quickly, and your odds are good — an interim direction can stop the filling within weeks.
- **Mixed.** A project with clearance but poor compliance, or a well-connected proponent. Weight shifts to condition enforcement, the renewal date, the Environment Court, media, and persistent documentation.
- **Entrenched.** A large, politically backed project or a long-established encroachment with many beneficiaries. Assume the order will be resisted; plan for **contempt, repeat petitions, and years of documented follow-up**, and treat partial implementation as a genuine win.

Documented Bangladeshi Dynamics

The record shows both the strength and the wall. **The courts have been remarkably open** — since **Dr Mohiuddin Farooque v Bangladesh** established that a public-interest organisation is a "person aggrieved" under Article 102, a long line of petitions has produced directions on industrial pollution, brick fields, hill cutting, lake and wetland filling, and river encroachment, including orders to **demarcate and restore the Buriganga, Turag, Balu and Shitalakkhya** and to stop construction in them. **Rivers have been recognised as legal persons**, with the National River Conservation Commission as guardian — among the most far-reaching such rulings anywhere. **The constitutional foundation is strong** — the right to life read to include a healthy environment, reinforced by Article 18A. **But implementation lags badly** — encroachment and filling have continued after orders, and the repeated need to return to court is the defining feature of Bangladeshi environmental practice. The recurring lesson: **the courtroom is open; the enforcement is the fight**.

Assessment Framework — Determine Your Situation

Ask: is there demonstrable illegality (no clearance, filling a recorded water body, breach of conditions)? Do we have dated photographs and the old survey record? Is a river, wetland, hill, or ECA involved, bringing existing directions into play? Can we reach a public-interest organisation? Is filling happening now, making interim relief urgent? Who benefits, and how entrenched are they? The answers tell you whether to move immediately for interim relief or to build a slower enforcement and compensation case.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Bangladeshi campaigns rely on human chains, rallies, press conferences, memoranda, and community gatherings at threatened sites — the human chain in particular being a well-established, highly visible, and comparatively low-risk form. Assembly is subject to legal restrictions and, in practice, police permission, and political conditions in the country have been volatile, so take legal advice, keep everything peaceful and orderly, avoid anything that could be characterised as disorder or obstruction, and arrange legal support in advance. Confronting those physically carrying out filling or encroachment can be dangerous where powerful local interests are involved; prioritise safety and let the documentation and the courts do the confronting. This guide notes such tactics exist; it does not advise breaking the law.

Honest Assessment

Tilted fights are harder, and Bangladesh's particular difficulty is that winning in court is not the same as winning on the ground. But "harder" is not "hopeless": communities and organisations here have obtained orders that stopped filling, recovered water bodies, shut polluting operations, and established principles now used nationwide — and the country's jurisprudence is admired internationally precisely because ordinary people have been able to reach the courts. Concentrate force where the tilt is weakest — provable illegality and the open courtroom — and budget your energy for the enforcement years.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it does not look the same in every institution. Read your situation actor by actor. Handle it carefully: publish documents, not accusations, and route allegations to the bodies designed for them.

Clearance and the regulator. The structural weakness is capacity as much as capture: a small regulator, a very large number of installations, and clearance decisions made on documents supplied by the proponent. Signs: a category that plainly understates the project, clearance issued despite an obviously unsuitable site, inspections that never occur. Lever: the RTI request for the file, the objection and section 14 appeal, and the writ petition.

Land records and the district administration. The decisive pressure point in river and wetland cases, because whether a plot is "river" or "private land" is a records question. Signs: recent mutations converting water body to private plots, leases over khas land or riverbed, records that conflict with older survey maps. Lever: the **historical CS/RS record**, which is precisely why obtaining it early matters so much, plus petitions to the DC and the court.

Local political and business interests. Filling and encroachment are profitable and often locally protected, with many small beneficiaries as well as one large one. Signs: work continuing openly despite complaints, threats to those photographing. Lever: documentation, the courts, and safety-first tactics.

Enforcement after orders. The most consequential failure is not usually a bribe but **inertia plus interest** — nobody wants to demolish, and everyone benefits from delay. Lever: the monthly compliance record, reporting non-compliance formally (Section 8H), and contempt proceedings.

The companies. Establish ownership and directorships from the Registrar of Joint Stock Companies — documentary, provable facts. Watch for land acquired before the project became public.

How to act on it, safely. Document from records before you speak. Route genuine allegations to the **Anti-Corruption Commission**, the **Comptroller and Auditor-General** for public money, and the **National Human Rights Commission** for rights violations — and, above all, into your **writ petition and your reports of non-compliance**, where they are protected and consequential. Do not publish unproven accusations about named individuals: it exposes you legally and distracts from the documented illegality that is your strongest ground.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Bangladesh the timeline has a distinctive shape: a very fast opening, a relatively quick route into court, and then a long enforcement phase that is where most of the real work lies.

Realistic 12-Month Campaign Timeline

Weeks 1-4 (Emergency documentation). - **Photograph the site immediately**, dated and from fixed points; if filling or cutting is under way, this is the priority above everything else. - Identify the target precisely (Step 1) and write the one-page fact sheet — category, clearances required, deciding offices, water-body status, deadlines. - Request the **CS/RS records and mouza map** from the DC's office. - Form the committee and **contact a public-interest environmental organisation**.

Weeks 4-12 (Formal action). - File the **complaint with the DoE** requesting inspection and clearance status (Step 4, Track 1), and an **RTI request** for the clearance file. - Petition the **Deputy Commissioner** to stop the filling. - Where filling or construction is under way, support the filing of a **writ petition with an urgent application for interim directions** (Step 4, Track 3). - Hold the community meeting and launch media on the before-and-after images (Steps 3 and 5).

Months 3-6 (Building the case). - Broaden the coalition — organisations, professionals, academics, downstream communities (Step 3, Phase 3). - Complete the impact and legality analysis (Step 2, Layer 2), including **condition compliance** if clearance exists. - Commission **laboratory testing** where pollution is alleged, and complete the health and economic layer (Step 2, Layer 3). - Consider an **Environment Court** claim for penalty and compensation where harm is documented.

Months 6-12 (Order and enforcement). - Support the litigation to a **rule and interim directions**, then to final orders. - **Begin the monthly compliance record the day an order issues** (Step 3, Phase 4). - Report non-compliance formally (Section 8H) to the DoE, the DC, and the NRCC. - Sustain media, especially on any gap between order and reality. - Object at the **ECC renewal** date with the compliance record.

Beyond 12 months. - Expect the enforcement phase to run for years; maintain the photographic record and the committee. - Where directions are ignored, pursue **contempt or a fresh petition** with the documented record. - Watch for the encroachment returning quietly after attention moves on — this is the norm, not the exception.

Warning Signs — Act Early

Trucks tipping earth; boundary pillars or fencing appearing on a water body or hill; a new structure rising without visible approvals; effluent appearing in a channel; a notice of land acquisition; a clearance application becoming known. Each is a trigger to photograph **that day** and to request the records — because in Bangladesh the difference between a strong case and a weak one is usually whether someone photographed the site before it changed.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: photograph immediately and keep photographing; obtain the historical survey record; establish clearance status first; get a public-interest organisation involved early; seek interim relief while harm is still preventable; ask for concrete, supervisable orders; and treat enforcement as a second, longer campaign. Losing campaigns: document too late; never check clearance; file vague prayers; and disband the day the judgment arrives.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Bangladesh takes several forms, and it is worth naming them so you recognise a win when you get one: - **interim directions** halting filling, cutting, or construction while harm is still preventable; - **clearance refused, suspended, or cancelled**, or refused at renewal on a compliance record; - a **rule and final directions** requiring demarcation, removal of encroachments, or restoration of a water body; - **penalties and compensation** through an Environment Court for those actually harmed; - **enforcement** of an existing direction that had been ignored — often the hardest and most valuable win of all; - a **principle established** that other communities then use, which is how much of Bangladesh's environmental law was built; - and a community with an evidence archive and a working relationship with lawyers, ready for the next threat.

Bangladeshi communities and organisations have achieved every one of these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If the illegality is documented and the harm is ongoing, the writ route is almost always worth it — this is a jurisdiction where ordinary people reach the courts and win directions. If an order has issued, the question is not whether to continue but how to sustain the monitoring, and the answer is usually to reduce to a small,

disciplined core doing one photographic round a month. If the encroachment returns, return to court: repeat litigation is normal here and is not a sign of failure. What is rarely right is treating the judgment as the end.

The Bottom Line

Bangladesh's system faces intense development pressure, an under-resourced regulator, and a chronic gap between court orders and what happens on the ground. But it also gives communities something genuinely rare: an **open courtroom**. Every project needs an **Environmental Clearance Certificate**, and the most damaging categories need **location clearance and a full EIA** first, with clearance in most categories lasting only a year — a recurring chance to object. **Public interest litigation is settled law** since **Dr Mohiuddin Farooque v Bangladesh**, so an organisation acting in the public interest can petition under **Article 102**; the **right to life** has been read to include a healthy environment, reinforced by **Article 18A**; the High Court Division has issued far-reaching directions on rivers, wetlands, hills, kilns, and pollution; **rivers have been recognised as legal persons** with the National River Conservation Commission as guardian; dedicated **Environment Courts** can award penalties and compensation; and a **Right to Information Act** and an experienced public-interest bar stand behind it all. Communities that photograph the site the day they learn of it, obtain the historical survey record, establish clearance status first, reach a public-interest organisation early, seek interim relief while harm is preventable, ask for orders a court can supervise, and then keep documenting for as long as it takes have stopped filling, recovered water bodies, closed polluting operations, and built the very jurisprudence the next community will use. No single step wins; the combination does. Start today by photographing what you stand to lose, and by asking for the map that shows what it used to be.